

Court No. - 32

Case :- WRIT - C No. - 41503 of 2019

Petitioner :- Anil Kumar

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Vinay Kumar Pandey

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta, J.

Hon'ble Shamim Ahmed, J.

This writ petition has been filed, *inter alia*, for the following reliefs:

" (a) Issue a writ or direction in the nature of mandamus commanding and directing the respondent no.2 take appropriate decision on the application of petitioner dated 06.10.2019 which is still pending before respondent no.2 and till then stay the effect and operation of demand notice dated 29.08.2019 issued by respondent no.2 to petitioner. "

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we

direct the petitioner to appear on 26.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned demand notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 16.12.2019

MLK